

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #2	CCRB Case #: 201904772	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/03/2019 6:24 PM	Location of Incident: Unknown location; Blake Avenue and Chester Street	Precinct: 75	18 Mo. SOL 10/3/2020	EO SOL 5/20/2021	
Date/Time CV Reported Wed, 05/01/2019 5:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/03/2019 11:19 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Bonamassa	18570	958319	PSA 2
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Trevor White	6961	939688	073 DET
2. DT3 Danielle Romano	01334	935390	073 DET
3. POM James Humpf	20489	953979	PSA 2
4. POM Robeul Islam	26027	964070	PSA 2
5. POM Jamarr Burnett	18784	954585	PSA 2
6. POM Joao Siopa	15706	958078	PSA 2
7. POM Steven Urchenko	15509	964813	PSA 2
8. POM Joseph Gonong	24373	963050	PSA 2
9. SGT Johnny Nicolas	4605	942800	PSA 2
10. POM Safraz Jailall	01921	953994	PSA 2
11. POM Arundeeep Chaggar	23208	962307	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: At an unknown location, officers stopped the vehicle in which § 87(2)(b) was an occupant.	
B. Officers	Abuse: At an unknown location, officers questioned § 87(2)(b) § 87(2)(b).	
C. POM Daniel Bonamassa	Abuse: At Blake Avenue and Chester Street in Brooklyn, Police Officer Daniel Bonamassa stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
D. POM Daniel Bonamassa	Abuse: At Blake Avenue and Chester Street in Brooklyn, Police Officer Daniel Bonamassa questioned § 87(2)(b)	

Case Summary

On May 1, 2019, § 87(2)(b) called IAB and filed the following complaint. IAB referred it to the CCRB, where it was received on June 3, 2019 (Board Review 01).

On April 3, 2019, at an unknown time and place of occurrence within the boundaries of the 73rd Precinct in Brooklyn, § 87(2)(b)'s vehicle was pulled over by two unidentified uniformed officers (**Allegation A: Abuse of Authority – Vehicle Stop**, § 87(2)(g)). The officers advised § 87(2)(b) that she was being stopped due to a report they had received about the presence of a firearm inside her vehicle (**Allegation B: Abuse of Authority – Question**, § 87(2)(g)). § 87(2)(b) immediately knew that her longtime adversary, § 87(2)(b), had made a false report against her, as she had been previously harassed in similar ways. § 87(2)(b) thus informed the officers that § 87(2)(b) had likely made the false report and denied being in possession of a firearm. Upon hearing her explanation, the officers released her without conducting a further investigation or issuing any summonses.

Several hours later that same evening, at approximately 6:24 PM, at Blake Avenue and Chester Street in Brooklyn, § 87(2)(b) was travelling as a passenger in her friend § 87(2)(b) vehicle, when they were pulled over again by Police Officer Daniel Bonamassa and Police Officer James Humpf of Police Service Area 2 (**Allegation C: Abuse of Authority – Vehicle Stop**, § 87(2)(g)). Police Officer Bonamassa advised § 87(2)(b) that he was investigating a 911 call regarding a motorist in a vehicle pointing a firearm at somebody, and that the vehicle described matched theirs. Police Officer Bonamassa then requested § 87(2)(b) consent to conduct a search of the vehicle (**Allegation D: Abuse of Authority – Question**, § 87(2)(g)). When she declined, Police Officer Bonamassa ordered § 87(2)(b) and § 87(2)(b) to exit and, after further investigation, placed them under arrest. § 87(2)(b) was ultimately charged § 87(2)(b) and § 87(2)(b) was charged § 87(2)(b).

Video footage of the second vehicle stop was obtained from the responding officers' Body-Worn Cameras (BWCs), including those worn by Police Officer Bonamassa, Police Officer Humpf, Police Officer Robeul Islam, Police Officer Jamarr Burnett, Police Officer Joao Siopa, Police Officer Steven Urchenko, Police Officer Joseph Gonong, Sergeant Johnny Nicolas, Police Officer Jailall Safraz, and Police Officer Arundeepp Chaggar (Board Review 08-21).

Findings and Recommendations

Allegation (A) Abuse of Authority: At an unknown location, officers stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: At an unknown location, officers questioned § 87(2)(b).

§ 87(2)(b) was interviewed on July 18, 2019 (Board Review 02). The undersigned investigator obtained a follow-up statement from § 87(2)(b) by telephone on August 7, 2019 (Board Review 03). Additional information was also obtained during § 87(2)(b)'s CCRB appearance on August 22, 2019 (Board Review 04). While a phone statement was obtained from § 87(2)(b) on July 29,

2019, she was uncooperative with the investigation's attempts to obtain a sworn statement (Board Review 05). Police Officer Bonamassa was interviewed on October 29, 2019 (Board Review 06).

§ 87(2)(b) had almost no information to relay regarding the time, place, and location of the first vehicle stop on April 3rd – about the substance of what occurred, about the nature of her interactions with the officers, and about the preceding or precipitating events that occurred before the vehicle stop (at an unknown time). § 87(2)(b) stated that she was driving to the 73rd Precinct stationhouse at some time in the morning – she initially said 7:30 AM, but subsequently said it was in the “late morning” – to visit a lodged prisoner. But as she approached the stationhouse, § 87(2)(b) was surprised to see that § 87(2)(b) – her boyfriend's ex-partner, with whom she was engaged in a longstanding dispute – was also standing by outside the stationhouse building. § 87(2)(b) saw § 87(2)(b) approach at the same time, at which point she immediately ran over to speak with two uniformed officers nearby. During her in-person interview, § 87(2)(b) stated that she heard § 87(2)(b) yelling, “That's the car!” as she ran to the officers. When questioned again about this phase of the incident during the follow-up phone call, § 87(2)(b) said she did not hear what § 87(2)(b) was saying to the officers. Without parking as she had intended, § 87(2)(b) decided to continue down the road she was travelling and did not return to the stationhouse. § 87(2)(b) denied interacting with § 87(2)(b) in any manner, verbally, physically, or gesturally.

At some point thereafter – she could not approximate the time, or estimate how long it had been since she passed § 87(2)(b) – § 87(2)(b) was pulled over by a marked police vehicle at an unknown location. During her in-person interview, § 87(2)(b) stated that she had no recollection of where the vehicle stop occurred. During her subsequent phone statement, though, she suggested that the vehicle stop may have occurred somewhere along Eastern Parkway, though § 87(2)(b) was not certain about this either and did not recall any intersections, landmarks, points of interest, or neighborhoods in proximity to the stop location.

§ 87(2)(g) While § 87(2)(b) stated in-person that she was stopped by the same two officers she passed outside the stationhouse, she said in her follow-up statement that the two officers who stopped her were different individuals altogether. § 87(2)(b) could not describe either the first or the second set of officers, beyond stating that they were all uniformed white males. She said she would not be able to identify the officers if she saw photos of them. Additionally, in her in-person interview, § 87(2)(b) stated that the officers told her they were investigating a report about a firearm in her vehicle and asked her a “couple of questions” in this capacity (she did not recall about what). § 87(2)(b) immediately knew that § 87(2)(b) had made another false report against her and told the officers about the background of their dispute. However, in her follow-up statement, § 87(2)(b) stated that the officers did not provide a reason for the stop, said nothing about reported firearms, and did not reference § 87(2)(b) in any manner, and that the officers ultimately released her without asking any questions. § 87(2)(b) said in both statements that the officers did not summons her.

The CCRB requested the NYPD and the New York State troopers to generate an audit of all warrant checks conducted on § 87(2)(b)'s name on the incident date. Their searches yielded no positive results. The CCRB also reviewed the relevant Event Summary and the Resource Recapitulation Log for Tour 1 and Tour 2, on April 3, 2019, and found no documentation of the stop in question. The NYPD confirmed that no UF-250 Stop, Question and Frisk Report was

generated. And no other police documentation pertaining to § 87(2)(b) such as the arrest paperwork generated later, referred to this vehicle stop. Police Officer Bonamassa had no knowledge of a prior vehicle stop either, and it does not appear to be mentioned in any of the BWC footage.

§ 87(2)(b), § 87(2)(g)

Allegation (C) Abuse of Authority: At Blake Avenue and Chester Street in Brooklyn, Police Officer Daniel Bonamassa stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (D) Abuse of Authority: At Blake Avenue and Chester Street, Police Officer Daniel Bonamassa questioned § 87(2)(b).

§ 87(2)(b) stated that, at the time of the second vehicle stop, she was a passenger in her friend § 87(2)(b) vehicle, with § 87(2)(b) driving and § 87(2)(b)'s child seated in the rear. At approximately 6:30 PM, at the intersection of Chester Avenue and Blake Avenue in Brooklyn, § 87(2)(b) vehicle was pulled over by Police Officer Bonamassa and Police Officer Humf in a marked car. Police Officer Bonamassa advised § 87(2)(b) and § 87(2)(b) that they had received a report of someone pointing a gun out of a vehicle that resembled theirs. While both § 87(2)(b) and § 87(2)(b) denied being involved in any of activity involving guns, Police Officer Bonamassa told § 87(2)(b) that, "He knew who she was." Upon ordering them out the vehicle, Police Officer Bonamassa eventually arrested § 87(2)(b) and § 87(2)(b).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) said she told Police Officer Bonamassa that neither she nor § 87(2)(b) had anything to do with the alleged gun-pointing. When Police Officer Bonamassa then asked if she would consent to a search of her vehicle, § 87(2)(b) declined to do so, stating that she had done nothing suspicious and that the officers needed a warrant to search the vehicle. While § 87(2)(b) stated that there was nothing wrong with the vehicle or the validity of her driver's license, she was ultimately arrested by Police Officer Bonamassa § 87(2)(b). § 87(2)(b) stated that she knew nothing about any earlier vehicle stops that day involving § 87(2)(b).

Police Officer Bonamassa stated that at approximately 5:56 PM, while he and his partner were on routine sector patrol, he received a radio run regarding a vehicle in the local area with a firearm inside. Police Officer Bonamassa recalled few details about what additional information was relayed about the nature of the report – whether it specified what was gun-related and vehicular about the incident, whether it was an ongoing crime, whether suspect descriptions were provided, and whether the 911 caller was identified or anonymous. However, Police Officer Bonamassa stated that the following information was relayed: § 87(2)(b) was specifically noted, by name, as being involved; the vehicle was described as a black Honda Civic with State of New Jersey temporary license plates (the number of which was relayed); and that the initiating 911 caller had given the incident location as Blake Avenue and Rockaway Avenue. As a 73rd Precinct Neighborhood Community Officer at the time, Police Officer Bonamassa was not only aware of

§ 87(2)(b) as a precinct resident with prior involvement with law enforcement; he also knew that she was the subject of two active I-Cards with probable cause to arrest, both issued by the 73rd Precinct's Detective Squad.

Because he happened to be a block away from the reported incident location at the time of the radio run, Police Officer Bonamassa immediately headed to the scene and began canvassing for the described vehicle. Either he or his partner then quickly spotted the vehicle, matching it by its description and license plate number, and effected a stop at Chester Avenue and Blake Avenue. Police Officer Bonamassa had no visual contact with the occupants prior to the stop or on approach toward the vehicle. He did not recall if he observed the vehicle make any traffic infractions before the stop. Police Officer Bonamassa could not explain what he noted in his memo book entry about the license plate – that the plate was “expired” – and stated that it was simply a temporary New Jersey plate with numbers matching what had been relayed.

Upon approaching the driver's side window, Police Officer Bonamassa requested identification from the driver, § 87(2)(b) which she provided. He also recognized § 87(2)(b) in the passenger seat (from pedigree photographs he had previously seen). § 87(2)(b) and § 87(2)(b) complied when ordered out of the vehicle, but denied being involved in the gun-related incident Police Officer Bonamassa described. Additionally, § 87(2)(b) stated that she did not have any form of identification and – though Police Officer Bonamassa was certain this was not true – claimed that her name was § 87(2)(b). When he ran a warrant check on the name, Police Officer Bonamassa found an open warrant connected with this name as well. Ultimately, the stop concluded when the initiating 911 caller, who he identified as § 87(2)(b), was brought to the stop location for the purpose of a show-up. When she identified § 87(2)(b) as the perpetrator in her complaint, Police Officer Bonamassa proceeded to place § 87(2)(b) under arrest.

The investigation received body worn camera footage from the 10 of the officers who responded to the scene, the most relevant of which was Police Officer Bonamassa's, transmitted via three files (Board Review 08-10). Video 1 (Board Review 08) shows Police Officer Bonamassa initiating the vehicle stop and obtaining § 87(2)(b) identification. He also notes at this time that § 87(2)(b) who he recognizes, claims to be “§ 87(2)(b),” but has no identification. At 2 minutes and 58 seconds into the recording, Police Officer Bonamassa asks § 87(2)(b) “you mind if we check in the car?” § 87(2)(b) initially does not verbally respond. Police Officer Bonamassa states, “...so if you have nothing to hide – I’m asking your permission.” When § 87(2)(b) asks why, Police Officer Bonamassa informs her that a “call came over matching this car with a gun.” § 87(2)(b) replies by stating in substance that the officers would be conducting a search of the vehicle regardless of her consent if they actually believed there was a gun in the car, and states, “I know my rights.” Police Officer Bonamassa asks § 87(2)(b) again if he can “check” the vehicle. When § 87(2)(b) does not answer affirmatively, Police Officer Bonamassa directs his attention to § 87(2)(b) on the other side of the vehicle. Police Officer Bonamassa asks § 87(2)(b) to state her name again and tells her to be honest – to which she replies § 87(2)(b) again. At 5 minutes and 6 seconds in the recording, Police Officer Bonamassa begins to review a document which appears to be a Departmental pedigree sheet featuring § 87(2)(b)'s photograph. Police Officer Bonamassa then shows the document to another officer and asks, “Is this her?” The officer responds affirmatively, twice stating, “That’s her.” Police Officer Bonamassa proceeds to order the occupants out of the vehicle. At 1 minute and 38 seconds into Video 2 (Board Review

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three prior CCRB complaints and has been named as a victim in six allegations, all of which were truncated as complainant/victim uncooperative (Board Review 26):
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party to.
- Police Officer Bonamassa has been a member of service for four years and this is the first complaint to which he has been a subject.

Mediation, Civil, and OCA History

- This case was not suitable for mediation.
- According to the New York City Comptroller's Office, as of December 18, 2019, no Notice of Claim had been filed in regards to this incident (Board Review 29).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 02

Investigator: /sprakash
Signature

Inv. Santosh Prakash
Print Title & Name

5/28/20
Date

Squad Leader: Alexander Opoku-Agyemang IM Alexander Opoku-Agyemang 5/29/2020
Signature Print Title & Name Date

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